



POLICE DEPARTMENT

November 13, 2012

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Michael Golden
Tax Registry No. 946484
Organized Crime Control Bureau
Disciplinary Case No. 2012-6652

The above-named member of the Department appeared before me on July 11, 2012, charged with the following:

1. Said Police Officer Michael Golden, while assigned to the 52nd Precinct, while on-duty, on or about August 10, 2010, in the confines of the 52nd Precinct, did fail and neglect to properly secure the handcuffs on an arrestee, Person A, resulting in the escape of said arrestee.

P.G. 208-02, Page 1, Paragraph 3 – ARRESTS-REMOVAL TO DEPARTMENT FACILITY FOR PROCESSING

2. Said Police Officer Michael Golden, while assigned to the 52nd Precinct, while on-duty, on or about August 10, 2010, in the confines of the 52nd Precinct, did fail and neglect to safeguard a prisoner, Person A, resulting in the loss of said prisoner.

P.G. 203-05, Page 1, Paragraph 2 PERFORMANCE ON DUTY

The Department was represented by Javier Seymore, Esq., Department Advocate's Office, and Respondent was represented by Michael Martinez, Esq.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Guilty of Specification No. 1. Specification No. 2 is Dismissed.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Lieutenant Kevin Maloney as its only witness.

Lieutenant Kevin Maloney

Maloney, a 19-year uniformed member of the service (UMOS), is assigned to the 52 Precinct Impact Unit. He has been assigned to various Precincts including the 26, 28, 47, 48 and the 52. He has held the rank of lieutenant for approximately four years.

Maloney recalled that on August 10, 2010, he performed a 1715 x 0200 hours tour in uniform, in a marked radio motor patrol car (RMP) with Respondent. They were assigned to the Impact Zone. He testified that Impact Unit officers are placed in high crime areas designated as Impact Zones to deter violent crimes. A safety checkpoint was set up in the area of 194 Street and Marion Avenue to stop vehicles to check registrations, insurance, inspections, and perform driver license checks. Several arrests were made at this safety checkpoint. Respondent arrested Person A for criminal possession of marijuana and criminal possession of a gravity knife.

As Maloney was seated in his RMP performing license checks, he looked up and saw several officers running after Person A in a "close chase." Since Maloney saw that the van, which contained several prisoners, was unsecured, he told the officer who was

standing next to his RMP assisting him in running license checks to go and assist the officers while Maloney ran over to the van to secure the prisoners inside the van.

Maloney testified that the officers caught Person A and apprehended him. Maloney then terminated the checkpoint to insure all of his personnel were accounted for and because he wanted to transport Person A back into the command to get him medical attention. When he was asked if he would have terminated the checkpoint if Person A had not attempted to flee, Maloney replied that, "Usually a roadblock goes from an hour to two hours depending."

Respondent told Maloney that he had loosened one handcuff because Person A had an injury. Person A was then able to slip out of this handcuff and flee. When Maloney was asked if it was proper procedure for an officer to loosen the cuff on an individual who is under arrest, Maloney replied, "In the circumstances involved with an existing injury, I believe it is, yes." Maloney testified that although Person A did attempt to run away, since his officers had chased Person A only "half a block at most" before they re-apprehended him, in his opinion Person A's brief flight did not constitute an escape from custody. Maloney called the Internal Affairs Bureau (IAB) to report that Person A had a small laceration on the top of his head. He did not notify IAB that Person A had escaped because "there was no escape."

On cross-examination, Maloney confirmed that as a result of working closely with Respondent for over a year, his opinion of Respondent was that, "I wish I had 300 more officers like him." Maloney agreed that Respondent "was very active with arrests and very active in dealing with prisoners."

On further questioning regarding whether the checkpoint was terminated due to the Person A incident, Maloney testified that the checkpoint was terminated because

they were already two hours “into” the checkpoint at the time when the Person A incident took place and that the feasibility for a checkpoint is usually no longer than an hour-and-a-half. Maloney further testified that Person A had an injury, that he needed “to get him out of there,” and that he only had three RMPs at the location. Maloney acknowledged that one of the reasons he terminated the checkpoint was because he had to deal with the laceration to Rodriguez’s head.

Maloney testified that several officers chased Person A but Maloney did not see who had tackled Person A because Person A was out of his sight when they caught him. Maloney recalled that after Person A ran about 20 feet on 194 Street, he made a right turn onto Marion Avenue. Maloney recalled that within “a minute” Respondent was escorting Person A back to the van.

Respondent’s Case

Respondent testified on his own behalf.

Respondent

Respondent, a four-year UMOS, described his activity in the Impact Zones to which he has been assigned as follows: “In the 46, I averaged about 120 something arrests between felonies, misdemeanors, firearms, narcotics, domestics...And the 52, I did about the same thing, about hundred and something arrests...” Respondent stated that he was able to get transferred into the Narcotics Division of the Organized Crime Control Bureau, because he was highly recommended by each of his commanding officers. Currently Respondent is full duty and has never been modified nor the subject of any prior Department discipline.

Respondent acknowledged that on August 10, 2012, he was assigned to the 52 Precinct Impact Zone. He was working on East 194 Street and Marion Avenue in uniform, driving Maloney in a marked RMP. Respondent recalled that approximately ten other people were working at the checkpoint with him. Respondent also acknowledged arresting Person A, whom he had never met, at the checkpoint that day. In describing the circumstances that led up to the arrest of Person A, Respondent stated that a red Tahoe (driven by Person A) pulled up to the checkpoint with a defective headlight. Respondent, during the checkpoint, was checking for any equipment violations, inspections, registrations, insurance, or anything like that and this red Tahoe had a visible flaw.

Respondent approached the driver's side of the vehicle to talk to Person A. Respondent testified that he could see through the window and further stated, "So if you are looking inside the car, the window is down, the window is slightly down in the back seat, too, and you can see an individual was moving down with his left side pushing something down." Respondent acknowledged that this was on the rear passenger side behind the driver who was Person A. At this point, Respondent for his safety, moved to the back to see what was going on and find out why Person A was moving. Respondent acknowledged that he could clearly see down there and Person A was putting bags between the seat, which unbeknownst to Person A were falling through the seat onto the floor. The bags contained a green leafy substance. Respondent acknowledged that he observed approximately two or three marijuana bags falling directly to the floor.

Respondent then proceeded to open the car door and asked Person A to step out of the vehicle. Person A was compliant at this point and Respondent brought him to the back of the vehicle where he searched him and found a gravity knife on Person A's

person. Respondent informed Person A that he was under arrest and when he went to grab his right arm and then actually grabbed his arm, Person A “gave out like a yelp and a yell.” Respondent stated that he was “kind of taken back” and asked Person A what happened. Person A pointed at his right arm which had a fresh scar, from approximately the middle of his forearm to past his elbow. Respondent described the scar as an incision that came across, where you could see the fresh skin still healing. Person A explained to Respondent that he had surgery recently. Respondent testified that he had “a little bit” of experience in injuries when he was a volunteer emergency medical technician in New Jersey for the Northfield Police Department. Respondent further testified that based on Person A’s “yelping” reaction, he believed that Person A was in pain.

Respondent stated that he next proceeded to explain to Person A that he was going to rear cuff him because he had to be handcuffed. Respondent testified that when he began to cuff Person A made a sound, “as I did it, he was ahh, like that,” which led Respondent to believe Person A was in pain. Respondent again stated that Person A was in pain as he was bringing the handcuff behind his back. At this point, Respondent had placed Person A in handcuffs and he was still complaining that he was in a lot of pain. Respondent stated, “I then, you know, because I felt bad for him, I loosened up his right handcuff like two clicks. I then double locked him because we had to double lock him.” Respondent described double-locking as follows, “double lock, when you handcuff him once, after arresting a lot of people, when they sit down in the car, they can push it down and it will click and pinch them, so you double lock them so it doesn’t move at all so it’s locked in place.”

At that point Person A, who was very compliant, was not complaining about his hand or arm so Respondent, who was right behind Person A, began to bring him towards

the van. After opening the door, as Person A got one step into the van, he kicked off causing Respondent to fall backwards. Respondent stated that he almost fell to the ground and caught his bearings. In further describing physically what Person A did, Respondent stated, "I can't tell you which foot, but as he was stepping up, whichever foot was first, I was right behind him. There are two steps. He stepped on the first step, and that's when he pushed off. His whole body hit my chest. I went backwards, started to turn around, regained where I was, and took pursuit after him right away." Respondent acknowledged that as Person A pushed back, this caused Person A's back to hit Respondent's body and then Person A ran past him. Respondent also acknowledged that he was holding Person A the whole time and almost fell down.

Respondent stated that he then engaged in a foot pursuit and went after Person A. Respondent stated that Person A was just out of his grasp, "like a little bit longer than my arm out," and he was able to catch him. Respondent stated that he "was right on his tail" and as they came to almost the corner of the next block he was able to jump on Person A and grab him around the waist, causing them both to go to the ground. Respondent acknowledged tackling Person A and agreed that there were other officers that were working with him who also engaged in the pursuit. Respondent further acknowledged that Person A was injured as a result of the tackling and he stated that he first noticed the injury when he handcuffed Person A and observed him bleeding from the head. Respondent estimated that the amount of time it took from when Person A pushed off against him to when Respondent tackled Person A was "seconds." Respondent estimated that Person A actually ran almost a block's length and he never lost sight of him. Respondent testified that the furthest away he was from Person A was when they first started off, which was probably about a car-length away. Upon tackling

Person A, he brought him back to the RMP and then Person A went to the hospital.

Respondent did inform his lieutenant of what had happened.

Respondent acknowledged that he loosened the handcuff a couple of clicks because he thought Person A was feeling pain. Respondent explained that he felt he could do this and he did it at the time because:

I have done a lot of arrests between different ages, elderly, young, domestic, or anything else. You can't, from what I see, handcuff everybody hard. Put them in the back. We're all supposed to go with CPR, courtesy, professionalism and respect. I believe in that.

There are times when you have to handcuff somebody aggressively. A gun collar, something aggressive, domestic violence. It happens. There are other times where you might run into a suspended license of an elderly male, and what am I going to do, handcuff him hard? This person was in pain. That's why I did it. I felt bad for him. You know, whether he pushed off me, I felt bad.

Respondent answered in the affirmative when he was asked if he had done anything different knowing that he had shown Person A some compassion and loosened the handcuffs a little bit. Respondent stated, "Yeah, I always stay in control of everyone. If it's my person I'm arresting, he is my person. I don't hand him off to another person. I know the handcuff is loose, loosened up. I stayed with the guy. I held him. I walked him up. I brought him to the van like I would do to anyone else, handcuffed hard or handcuffed soft. It's just the way I do my job." Respondent acknowledged that he believed he was handling the situation in a way such that he would be able to respond if Person A tried to take advantage. Respondent acknowledged that he intentionally loosened the cuffs based on what he observed regarding Person A. Respondent denied ever losing sight of Person A, stating "absolutely not" and further denied that Person A got away from anybody on his team.

On cross-examination, Respondent stated that he could not discuss with Maloney at the scene that he was going to loosen the handcuffs on Person A a few clicks because Maloney was in the RMP checking the license. Respondent acknowledged that he did not discuss his decision with anyone and he took it upon himself to do it. Respondent explained the difference between a "soft cuff" and "hard cuff":

you get an elderly man, you don't need to handcuff him with aggression. Sir, turn around and put your hands behind your back. He is being compliant. You then click it. Same thing what I do if I did a prisoner transport. To me, that's a soft cuff. An aggressive cuff is I walk into a domestic, a guy is stabbing a teddy bear and I have to handcuff him, he's resisting. I'm on the ground wrestling him, and I put the handcuffs on him aggressively. That's a hard cuff.

Respondent testified that when he initially placed Person A under arrest he did not consider it to be an aggressive handcuff. Respondent stated that he tightened the cuffs until he could fit one finger in between [the wrist and the cuff] "like we're taught in the [Police] Academy."

Respondent acknowledged that when Person A stepped into the van he pushed Respondent and he was the only officer guiding Person A into the van at that point. Respondent further acknowledged that Person A was able to physically push Respondent away from him and flee from his custody and control. Respondent testified that when he apprehended Person A the one handcuff was off of the injured hand but the cuff was still double-locked. Respondent explained that the cuff was still connected to the pins stating "inside the cuff, they have like little gear teeth." Respondent further explained that when Person A pushed off of him and started running he had both his hands cuffed behind his back. Respondent was not sure at which point Person A slipped out of the cuff on his injured hand while he was running, but he did acknowledge that

when he caught Person A one cuff was attached to one wrist and the other cuff was hanging. Respondent stated that he had never had a person slip a cuff before but he did acknowledge that based on his actions Person A was able to slip the cuff.

Respondent acknowledged that his handcuffs were working properly that day and had no malfunctions. Respondent stated that when he caught Person A he had to undo the handcuff because of the double lock and place it back on. When asked if he considered this handcuff situation a soft or hard handcuff he stated, "That handcuff would have to be a hard handcuff." Respondent acknowledged that after Person A pushed him, he was able to get out of his custody and control. Respondent also acknowledged that he had to chase Person A to re-apprehend him.

Upon further questioning, Respondent testified that Person A began to run away immediately after he pushed Respondent, that the pursuit lasted only a few seconds, and that it ended, one-half block away from where Person A began to run, when Respondent tackled him. Respondent acknowledged that Person A suffered a small laceration on the top of his head.

FINDINGS AND ANALYSIS

Specification No. 1

It is charged that Respondent failed and neglected to properly secure the handcuffs on arrestee Person A "resulting in the escape" of Person A.

Respondent candidly acknowledged that after he had handcuffed Person A, he loosened the handcuff that he had placed on Person A's right wrist because he saw a fresh scar on Person A's right arm, because Person A was complaining that the handcuff was irritating this wound and causing him "a lot of pain," and because Respondent "felt

bad for him.” Respondent further acknowledged that because he had loosened the handcuff, Person A was able to wriggle his hand out of the handcuff.

Although Department witness Maloney testified that he saw Person A running down 194 Street and onto Marion Avenue, Maloney, nonetheless, asserted that in his opinion “there was no escape.” Although Maloney may not have considered Person A’s brief getaway as constituting an escape, the fact that Person A momentarily regained his freedom from custody indicates otherwise.

Respondent’s attorney argued that Person A did not actually escape based on the undisputed facts that: as soon as Person A began to run Respondent immediately began running after him; that Person A never had more than a short lead on Respondent; that Respondent never lost sight of Person A; and that Respondent tackled Person A after a pursuit that lasted only a few seconds and ended one-half block away from where Person A began to run away.

I reject Respondent’s argument that based on the above facts, Person A did not actually escape. According to Webster’s New World Dictionary (Webster’s) the common meaning of the word “escape” includes “to slip away,” which is exactly what Person A did here. The fact that Person A’s freedom was extremely short-lived does not change the fact that he was, however briefly, free from custody.

Respondent is found Guilty of Specification No. 1.

Specification No. 2

It is charged that Respondent failed and neglected “to safeguard” prisoner Person A “resulting in the loss of” Person A.

This charge contains two elements. Regarding the failure to safeguard element, Respondent's specific failure was that he loosened the handcuff on Person A's wrist too much. Since Respondent's specific failure with regard to safeguarding Person A is directly addressed in Specification No. 1, the general failure to safeguard charged here is redundant to the misconduct charged under Specification No. 1.

As to the second element, the Assistant Department Advocate (the Advocate) argued that there was a "loss" of Person A by Respondent in that "there was temporary loss of the prisoner for a few seconds." The common meaning of the word "loss," according to Webster's, is that something or someone is not able to be found and the Advocate did not dispute Respondent's claim that he never lost sight of Person A. Moreover, since under Specification No. 1 Respondent has been found Guilty of permitting Person A to "escape," that charge adequately addresses Respondent's misconduct of losing custody of Person A.

It is recommended that Specification No. 2 be Dismissed.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 N.Y. 2d 222 (1974).

Respondent was appointed to the Department on January 17, 2008. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

Respondent has been found Guilty of failing and neglecting to properly secure the handcuffs on an arrestee resulting in the escape of the arrestee.

The Advocate recommended that the penalty to be imposed on Respondent consist of the forfeiture of ten vacation days. The Advocate did not cite any previous decisions in support of this penalty recommendation.

A review of three previous decisions where UMOS were guilty of failing to properly secure the handcuffs on an arrestee resulting in the escape of the arrestee indicates that ten to 11-day penalties have generally been imposed only where the UMOS was also guilty of some other related misconduct.

For example, in *Case No. 84222/08* (May 12, 2010), a five-year police officer with no prior disciplinary record forfeited 11 suspension days already served for failing to properly handcuff a prisoner he was guarding inside a hospital which enabled the prisoner to escape from the hospital. However, in that case the officer was also guilty of having failed to keep the prisoner under constant observation because the officer left the prisoner unattended.

Also, in *Case No. 2010-3202* (March 29, 2011), a 14-year detective with no prior disciplinary record forfeited ten vacation days for failing to safeguard a prisoner who the detective had handcuffed to a metal bar inside a room. However, in that case the detective left the prisoner alone which allowed the prisoner to escape from custody.

Finally, in *Case No. 2010-3061* (Jan. 2, 2012), a six-year officer with no prior disciplinary record forfeited ten vacation days for failing to keep constant observation of an arrestee resulting in the arrestee's escape. However, in that case the officer was also found guilty of having failed to make an immediate radio transmission after becoming aware of the escape.

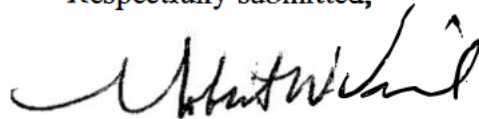
I believe that the imposition of a lesser penalty is justified here based on the undisputed facts that Respondent's act of loosening one handcuff was a compassionate

act based on Respondent's belief that the handcuff was causing pain; Respondent never lost sight of the prisoner; and the prisoner was caught one-half block away within a few seconds of his escape. Finally, the record shows that the prisoner's brief escape from custody did not result in any adverse consequences to any civilians or to the Department.

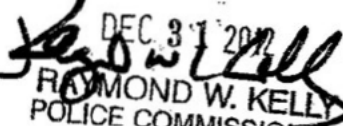
In formulating a penalty recommendation, I have also taken into consideration Respondent's lack of a prior disciplinary record (see attached Confidential Memorandum).

It is recommended that Respondent forfeit five vacation days.

Respectfully submitted,



Robert W. Vinal
Assistant Deputy Commissioner - Trials

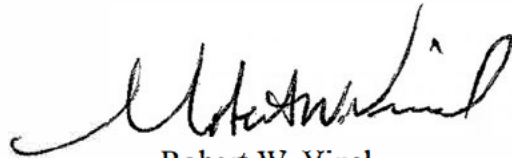
APPROVED
DEC 31 2002

RAYMOND W. KELLY
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner - Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER MICHAEL GOLDEN
TAX REGISTRY NO. 946484
DISCIPLINARY CASE NO. 2012-6652

The Respondent received an overall rating of 4.0 on his 2010 performance evaluation, 3.5 on his 2009 evaluation, and 3.5 on his 2008 evaluation. He has been awarded three Excellent Police Duty medals. [REDACTED]. He has no prior formal disciplinary record and no monitoring records.

For your consideration.



Robert W. Vinal
Assistant Deputy Commissioner Trials